

sonal representative, and to have assumed that of absolute owner (*c*).

15. **Factors.** — So goods in the possession of *factors*, in the ordinary course of their trade, are not forfeitable under this clause (*d*).

16. **Reversions.** — The forfeiture clause affects interests in reversion as well as in possession (*e*), though such interests are contingent (*f*), and the circumstance that notice was given to the trustee, after the bankruptcy, but before the appointment of assignees in bankruptcy, has been held not to prevent the operation of the Act (*g*).

17. **Deposits.** — Under the old Bankruptcy Acts, no forfeiture was incurred where the security for *la chose in action*, as a policy, was deposited with a banker, not by way of equitable assignment so as to give the banker a right to receive the money, but by way of *lien*, so as to disable the bankrupt from receiving the money (*h*). But the case was otherwise where the depositee had a right conferred upon him to receive the money, for then the *chose in action* was forfeited (*i*).

18. **Ignorance.** — The clause has been held not to apply where the true owner was ignorant of his being such, for if he did not know that he was the true owner, how could he have given any consent as such (*j*). And where the bankrupt held in trust for a corporation which had no power to possess such property, it was ruled that the corporation, being a mere abstraction of law, and incapable of action

(*c*) *Fox v. Fisher*, 3 B. & Ald. 135; *Ex parte Moore*, 2 Mont. D. & De G. 616; *Ex parte Thomas*, 3 Mont. D. & De G. 40; see *Quick v. Staines*, 1 B. & P. 293; *Whale v. Booth*, cited *Farr v. Newman*, 4 T. R. 625, note (*a*).

(*d*) *Mace v. Caddell*, Cowp. 232; *Ex parte Pease*, 19 Ves. 46, per Lord Eldon; *L'Apostre v. Le Plaistrier*, cited *Copeman v. Gallant*, 1 P. W. 318; *Whitfield v. Brand*, 16 M. & W. 282.

(*e*) *Bartlett v. Bartlett*, 1 De G. & J. 127; *Re Rawbone's Trust*, 3 K. &

J. 300, 376; *Rickards v. Gledstones*, 3 Giff. 298.

(*f*) *Hensley v. Wills*, 16 L. T. N. S. 582; *Davidson v. Chalmers*, 33 Beav. 653.

(*g*) *Re Tichener*, 35 Beav. 317.

(*h*) *Gibson v. Overbury*, 7 M. & W. 555.

(*i*) *Green v. Ingham*, 2 L. R. C. P. 525.

(*j*) *Re Rawbone's Trust*, 3 K. & J. 300, 476; and see *Ex parte Ford*, 1 Ch. D. 521; *In re Hickey*, 10 Ir. Rep. Eq. 117.